

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S REQUEST FOR
JUDICIAL NOTICE OF DOCKETED
DEFENSE MFL-SAC OPPOSITION**

(Evid. Code § 451–453)

Dept.: 302
Date: June 24, 2026

**PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE (DEFENSE MFL-
SAC OPPOSITION, INTRODUCTION PAGE)**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed**
by: Plaintiff Dylan Franciscus Rosario, Self-represented

I. REQUEST UNDER EVIDENCE CODE SECTION 452(D)

Pursuant to Evidence Code section 452, subdivision (d), Plaintiff respectfully requests that this
Court take judicial notice of the following docketed court record in this action:

Document: Defendant CSAA Insurance Exchange's Opposition to Plaintiff's Motion for Leave to
File a Second Amended Complaint ("MFL-SAC Opposition"), filed April 23, 2026, in CGC-25-

631802; specifically, the Introduction page of that Opposition containing the verbatim representation: “Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to Amend, as no such authority exists to support his motion.”

The Introduction page is attached as **Exhibit 1** to this Request.

The MFL-SAC Opposition is a court record of this action within the meaning of Evidence Code section 452, subdivision (d), and is the proper subject of judicial notice as to its existence, filing, and the words it contains. Plaintiff does not request judicial notice of the truth of any factual or legal contention within the Opposition; judicial notice is requested as to the existence and content of the docketed page only.

Procedural authority for the June 24, 2026 hearing line: This Court, by minute order entered May 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk), continued the consolidated motion calendar to June 24, 2026, 9:00 a.m., Department 302, and directed: “All parties immediately to provide courtesy copies of their filings per SF Local Rule 2.7B with a cover letter reflecting the new hearing date.” This Request is tendered in conformity with that order. This Request is associated with the three motions set for June 24, 2026, 9:00 a.m., Dept. 302: (A) Defendant’s Special Motion to Strike pursuant to CCP section 425.16 (filed April 9, 2026, seqs 015 to 018); (B) Defendant’s Demurrer to Plaintiff’s First Amended Complaint (filed April 13, 2026, seqs 019 to 023); and (C) Plaintiff’s Motion to Strike the May 6, 2026 Reply Declaration of Tyler J. O’Connell and Exhibit A (filed May 8, 2026, Transaction ID 79429443).

II. RELEVANCE

The Introduction page is relevant to two contemporaneously filed papers and the operative briefing on the June 24, 2026 calendar. First, it pins the representation that triggers Plaintiff’s companion Notice of Directly Adverse Controlling Authority under Cal. Rule of Professional Conduct 3.3(a)(2): *JKC3H8 v. Colton*, (2013) 221 Cal.App.4th 468, filed concurrently herewith. Second, it pins the representation against which Plaintiff’s companion Notice of Supplemental Authority (*JKC3H8 v. Colton*) is tendered for purposes of the anti-SLAPP / leave-to-amend sequencing analysis already lodged in the operative oppositions. No further argumentation is requested.

III. PROPOSED ORDER LANGUAGE

Plaintiff respectfully proposes that the Court enter the following:

“The Court takes judicial notice under Evidence Code section 452, subdivision (d), of Exhibit 1 to Plaintiff’s Request for Judicial Notice, namely the Introduction page of Defendant CSAA Insurance Exchange’s Opposition to Plaintiff’s Motion for Leave to File a Second Amended Complaint, filed April 23, 2026, in CGC-25-631802. Judicial notice is taken of the existence and content of the docketed page only, and not of the truth of any factual or legal contention within it.”

IV. SERVICE

This Request and Exhibit 1 are served on Defendant’s counsel of record (Mark G. Tapp, Tyler J. O’Connell, Mason Schubert, and Sarah J. Blithe, Porter Scott, P.C.) by electronic mail per CCP section 1010.6 and Cal. Rules of Court, rule 1.21, with a Proof of Service (POS-050) filed contemporaneously.

Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this request for judicial notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	Evid. Code 451–453	Proper categories; neutral descriptions	Items list sources only	Items for notice
2	CRC 3.1306(c)	Request format and item list	Numbered items with citations	RFJN body
3	CRC 3.1113	Organized authority references	TOA or inline cites as used	Body